



CHAPTER 3.

An Act to continue in force the Local Elections and Register of Electors (Temporary Provisions) Act, 1939, with certain amendments, and to make provision for safeguarding the rights of contributory employees and local Act contributors as defined by the Local Government Superannuation Act, 1937, and the Local Government Superannuation (Scotland) Act, 1937, in respect of remuneration lost in consequence of the first-mentioned Act. [19th December 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Local Elections and Register of Electors (Temporary Provisions) Act, 1939, shall have effect subject to the amendments set out in the Schedule to this Act, and, as so amended, shall continue in force until the thirty-first day of December nineteen hundred and forty-one and no longer unless Parliament otherwise determines.

Continuance with amendments of 2 & 3 Geo. 6. c. 115.

2.—(1) Any contributory employee or local Act contributor who received in respect of work done by him in the standard year as returning officer at a local election other than an election to fill a casual vacancy, or in connection with the preparation of a register of electors or juror's book remuneration, otherwise than as part of an inclusive salary continuing to be received by him, shall be entitled to contribute a sum in respect of that remuneration to the appropriate superannuation fund in respect of any year, whether before or after the passing of this Act in which by reason only of the Local Elections and Register of Electors (Temporary Provisions) Act, 1939, being in force

Provision as to superannuation rights of contributory employees.

1 Edw. 8. &
1 Geo. 6.
c. 68.

he is not required to do such work; and for the purpose of computing in accordance with the provisions of section eight of the Local Government Superannuation Act, 1937, the average remuneration of any contributory employee or of calculating the superannuation allowance of any local Act contributor under a local Act scheme, he shall be deemed to have received in respect of service rendered in any year in respect of which such contributions were made by him the remuneration by reference to which the contributions were calculated.

(2) In this section the expressions "contributory employee," "local Act contributor," "local Act scheme" and "appropriate superannuation fund" have the same meanings respectively as in the Local Government Superannuation Act, 1937, except that in relation to a local Act contributor the last mentioned expression means the superannuation fund in the benefits of which he is entitled to participate; and the expression "standard year" means, in relation to work done by any person as returning officer at a local election, the last year before the year nineteen hundred and forty in which such work was done by him, and, in relation to work done by any person in connection with the preparation of a register of electors or juror's book, the year nineteen hundred and thirty-nine.

1 Edw. 8. &
1 Geo. 6.
c. 69.

(3) In the application of this section to Scotland references to the Local Government Superannuation (Scotland) Act, 1937, shall be substituted for references to the Local Government Superannuation Act, 1937.

Short title.

3. This Act may be cited as the Local Elections and Register of Electors (Temporary Provisions) Act, 1940.

SCHEDULE.

Section 1.

The provisions of the Local Elections and Register of Electors (Temporary Provisions) Act, 1939, specified in the first column of this Schedule shall have effect subject to the amendments specified in the second column of the said Schedule.

Section three - - At the end of the section there shall be inserted the following subsection:—

“(2) While this Act is in force, section eleven of the Parliamentary and Municipal Registration Act, 1878, and Rule 28 contained in the First Schedule to the Representation of the People Act, 1918, shall not have effect.”

41 & 42 Vict.
c. 26.

7 & 8 Geo. 5.
c. 64.

Section eight - - In paragraph (a) for the words “town council” where those words first occur there shall be substituted the words “county town or district council”, and for the words “a town council” there shall be substituted the words “any such council”.

After paragraph (a) there shall be added the following paragraph—

“(aa) section one of this Act shall have effect as if in paragraph (b) of the proviso thereto, there were inserted after the word ‘occurred’ the following words:—“‘or, in the case of a councillor being a member of a county council representing a burgh, by the council of that burgh.’”

Section ten - - For the proviso to subsection (2) there shall be substituted the following proviso:—

“Provided that, the term of office of any alderman, councillor or elective auditor in office at the date of the expiry of this Act by virtue of the provisions of this Act or of anything done thereunder shall, unless Parliament otherwise determines, continue for six months after that date as if this Act had not expired”.